

The Competition Commission Of India (Number Of Additional, Joint, Deputy Or Assistant Director-General Other Officers And Employees, Their Manner Of Appointment, Qualification, Salary, Allowances And Other Terms And Conditions Of Service) Rules, 2009

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The Competition Commission Of India (Number Of Additional, Joint, Deputy Or Assistant Director-General Other Officers And Employees, Their Manner Of Appointment, Qualification, Salary, Allowances And Other Terms And Conditions Of Service) Rules, 2009

UNION OF INDIA

India

The Competition Commission Of India (Number Of Additional, Joint, Deputy Or Assistant Director-General Other Officers And Employees, Their Manner Of Appointment, Qualification, Salary, Allowances And Other Terms And Conditions Of Service) Rules, 2009

Rule

THE-COMPETITION-COMMISSION-OF-INDIA-NUMBER-OF-ADDITIONAL-JOINT-DEPUTY-OR-ASSISTANT-DIRECTOR-GENERAL-OTHER-OFFICERS-AND-EMPLOYEES-THEIR-MANNER-OF-APPOINTMENT-QUALIFICATION-SALARY-ALLOWANCES-AND-OTHER-TERMS-AND-CONDITIONS-OF-SERVICE-RULES-2009 of 2009

Published on 15 May 2009

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[Note: The original publication document is not available and this content could not be verified.]

The Competition Commission Of India (Number Of Additional, Joint, Deputy Or Assistant Director-General Other Officers And Employees, Their Manner Of Appointment, Qualification, Salary, Allowances And Other Terms And Conditions Of Service) Rules, 2009

Published vide G.S.R. 338(E), dated 15.5.2009, published in the Gazette of India, Extraordinary, Part II, Section 3(i), Sl. No. 290, dated 15.5.2009.

397.

In exercise of the powers conferred by clauses (da), (e) and (f) of sub-section (2) of section 63 read with sub-sections (1-A), (3) and (4) of section 16 of the Competition Act, 2002 (12 of 2003

) the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement .-(1) These rules may be called The Competition Commission of India (Number of Additional, Joint, Deputy or Assistant Director-General Other Officers and Employees, their Manner of Appointment, Qualification, Salary, Allowances and Other Terms and Conditions of Service) Rules, 2009.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions .-(1) In these rules, unless the context otherwise requires,-

(a)

"Act" means the Competition Act, 2002 (

12 of 2003

);

(b)

"Commission" means the Competition Commission of India established under sub-section (1) of section 7 of the Act;

[* * *]

(2)

Words and expressions used but not defined in these rules and defined in the Competition Act, 2002 (12 of 2003

) shall have the same meaning assigned to them in that Act.

3.

Salary and allowances of the Director-General, Additional, Joint, Deputy or Assistant Director-General and officers and other employees of the office of Director-General and their number .-The salary and allowances of the Director-General, Additional, Joint, Deputy or Assistant Director-General and officers and other employees of the office of Director-General and the number of Additional, Joint, Deputy or Assistant Director-General and officers and other employees of the office of Director-General shall be as specified in Schedule I.

4.

Conditions of service .-(1) The conditions of service of the Director-General, Additional, Joint, Deputy or Assistant Director-General and officers and other employees of the office of Director-General and any other category of employees in the matter of leave, joining time, joining time pay, age of superannuation, traveling allowance and leave travel concession shall be regulated in accordance with such rules and regulations as are, from time to time, applicable to officers and employees of the Central Government drawing similar pay scales.

(2)

The Director-General, Additional, Joint, Deputy or Assistant Director-General and officers and other employees of the office of Director-General shall be eligible for general pool accommodation till a separate office and residential complex for the Commission is constructed.

(3)

The Director-General, Additional, Joint, Deputy or Assistant Director-General and officers and other employees of the office of Director-General on deputation, who are Government employees and have been allotted residential accommodation under general pool shall be eligible to retain the facility of Government residential accommodation.

(4)

The Director-General, Additional, Joint, Deputy or Assistant Director-General and officers and other employees of the office of Director-General not allotted accommodation shall be eligible for House Rent Allowance as admissible to officers and employees of the Central Government drawing similar pay scales.

(5)

The Director-General, Additional, Joint, Deputy or Assistant Director-General and officers and other employees of the office of Director-General including those on deputation while in service with the Commission shall be entitled to medical facilities as specified in Schedule II.

(6)

(i)

The Director-General, Additional, Joint, Deputy or Assistant Director-General and officers and other employees of the office of Director-General appointed on deputation, shall continue to be governed by Provident Fund Schemes as are applicable to them in their parent Ministry or Department or organisation;

(ii)

The Commission shall recover contribution towards provident fund from such Director-General, Additional, Joint, Deputy or Assistant Director-General and officers and other employees of the office of Director-General and remit the amount immediately to the lending Ministry or Department or organisation.

(iii)

Any loss of interest on account of late remittance shall be borne by the Commission.

(7)

The Director-General, Additional, Joint, Deputy or Assistant Director-General and officers and other employees of the office of Director-General other than those on deputation shall be entitled Group Insurance as per the scheme to be formulated by the Commission in consultation with the Central Government:

Provided that in the case of the Director-General, Additional, Joint, Deputy or Assistant Director-General and officers and other employees of the office of Director-General appointed on deputation, shall continue to be governed by the Group Insurance Schemes as are applicable to them in their parent Ministry or Department or organisation.

(8)

(i)

The Commission shall recover contribution towards the insurance schemes from such Director-General, Additional, Joint, Deputy or Assistant Director-General and officers and other employees of the office of Director-General and remit the amount immediately to the lending Ministry or Department or organisation.

(ii)

Any loss of interest on account of late remittance shall be borne by the Commission.

(9)

The Director-General, Additional, Joint, Deputy or Assistant Director-General and officers and other employees of the office of Director-General who are not on deputation shall be governed by the new pension scheme.

(10)

The Director-General, Additional, Joint, Deputy or Assistant Director-General and officers and other employees of the office of Director-General who are on deputation shall be eligible for pension and retirement benefits, if any, as are available to them in their parent organisation.

5.

Official visits abroad .-Official visits abroad by Director-General, Additional, Joint, Deputy or Assistant Director-General and officers and other employees of the office of Director-General shall be undertaken with the prior approval of the Chairperson or any other Member or officer of the Commission authorised by the Chairperson.

(2)

Foreign visits of Additional Secretary and above level officers will be regulated as per guidelines or instructions issued by Central Government from time to time.

(3)

Per Diem and other allowances will be admissible as per Ministry of External Affairs existing instructions.

6.

Deputation allowance .-The persons selected on deputation basis shall be given an option to either opt for the pay scale

and other service benefits of the borrowing organisation or to retain their own pay scales and get deputation allowance, as per the existing instructions of the Government of India on the subject.

[7. Procedure for recruitment - The recruitment of Additional, Joint, Deputy or Assistant Director-General and officers and other employees of the office of Director-General shall be made by the Central Government in the manner as specified in schedule-III.]

8.

Qualification .-The person to be appointed as Director-General, Additional, Joint, Deputy or Assistant Director-General and officers and other employees should be a person of integrity and outstanding ability and who have experience in investigation, and knowledge of accountancy, management, business, public administration, international trade, law or economics.

9.

Residuary provision .-Matters relating to the terms and conditions of service of the Director-General, Additional, Joint, Deputy or Assistant Director-General and officers and other employees of the office of Director-General with respect to which no express provision has been made in these rules, shall be referred by the Commission to the Central Government for its decision.

10.

Powers to relax .-The Central Government shall have power to relax the provisions of any of these rules in respect of any class or category of persons.

[SCHEDULE I]

[See rule 3]

Post of Professionals in the office of DG-CCI

Sl. No.

Name of post

No. of posts

Pay band

Grade pay

1.

Director-General

1

Rs.

37,400-67,000

Rs.

10,000 or Rs. 12,000

2.

Additional Director-General

4

Rs.

37,400-67,000

Rs.

8,900

3.

Joint Director-General

8

Rs.

37,400-67,000

Rs.

8,700

4.

Deputy Director-General

20

Rs.

15,600-39,100

Rs.

7,600

Support Staff in the office of DG-CCI

Sl. No.

Name of post

No. of posts

Pay band

Grade pay

1.

Deputy Director-General

1

Rs.

15,600-39,100

Rs.

7,600

2.

Assistant Director-General

3

Rs.

15,600-39,100

Rs.

6,600

3.

Office Manager

4

Rs.

9,300-34,800

Rs.

5,400

Note. - The pay scale of the post of Director General may be kept flexible at Rs. 37,400 - 67,000 with Grade Pay of Rs. 10,000 or Rs. 37,400 - 67,000 with Grade Pay of Rs. 12,000 as may be decided by the Competent Authority, so that suitable incumbents may be appointed against this post.

II

[See rule 4(3)]

MEDICAL FACILITIES

1. Outdoor Medical expenses - (i) Director-General, Additional, Joint, Deputy or Assistant Director-General and officers and other employees of the office of Director General shall be eligible to get medical reimbursement for self and declared members of family.

Explanation.- For the purpose of this clause, the expression "family" has the same meaning as assigned to it in the Central Services (Medical Attendance) Rules, 1944.

(ii)

The reimbursement of outdoor medical expenses during the year shall be limited to the actual expenses or one month's pay on 1st January of the year (Basic pay + Dearness Allowance) whichever is less.

(iii)

The claim should be supported by Doctor's prescription and the original cash memos or bills for treatment by the Doctor and purchase of medicines and the release of increment or promotion during the year shall not affect the limit as on 1st January.

(iv)

For Director-General, Additional, Joint, Deputy or Assistant Director-General and officers and other employees of the office of Director General joining during the year, the annual entitlement shall be restricted on pro-rata basis.

(v)

The outdoor treatment shall be taken from the Authorised Medical Attendants from the panel to be maintained by the Commission.

2. Indoor treatment - (i) For the purpose of indoor treatment the Director-General, Additional, Joint, Deputy or Assistant Director-General and officers and other employees of the office of Director-General shall be entitled for medical treatment at hospitals authorised by the Commission in this behalf, and for this purpose cost of treatment including hospital accommodation, nursing home facility, etc. shall be as per the provisions of the Central Services (Medical Attendants) Rules, 1944 as applicable to the Central Government employees drawing equivalent pay.

(ii)

The authorised hospitals for the purpose of clause (i) shall be the same as are available to the Central Government employees regulated by Central Services (Medical Attendance) Rules, 1944.

(iii)

Treatment at authorised hospitals may be taken on the advice of the Authorised Medical Attendants except in emergency.

[SCHEDULE III

[see rule 7]

Name of post

Number of post

Classification

Pay band with Grade pay or pay scale

Whether selection Post or non-selection Post

Whether benefit of added years of services

admissible under the rule 30 of Central Civil Services (Pension)

Rules 1972

Age Limit for direct recruits

Educational and other qualifications required for
direct recruits

Whether age and educational qualifications
prescribed for direct recruits will apply in case of promotees

Period of probation, if any

Method of recruitment whether by direct
recruitment or by promotion or by deputation and percentage of
vacancies to be filled by various methods

In case of recruitment by promotion or deputation
or transfer or grades from which promotion or deputation or
transfer to be made

If a Departmental Promotion Committee exists,
what is its composition

Circumstances in which Union Public Service

Commission is to be consulted in making recruitment

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

(12)

(13)

(14)

1. Additional Director-General (Financial Analysis)

1(One)*(2009) *Subject to variation dependent on work load

Not applicable

Rs. 37400-67000+Grade Pay Rs. 8900

Selection

Not applicable

Not applicable

-

Not applicable

Not applicable

By deputation or short term contract

By deputation Essential:Officers of the All

India Services or Central Civil Services Group 'A' or Autonomous Organisations or Regulatory Authorities or Universities or Academic or Research Institutions etc having a Master's Degree in Business Administration (Finance) or Chartered Accountant or Company Secretary or Cost Accountant and working in analogous post or grade or two years experience in the grade pay of Rs.

8700 or six years in the grade pay of Rs. 7600 or equivalent and

having experience in investigation under any economic law

Desirable Experience in Financial Analysis related to Competition issues

Selection Committee consisting of:-(i)

Secretary Ministry of Corporate Affairs Chairman(ii)

Representative of Competition Commission of India not below the level of Joint Secretary-Member(iii) Expert nominated by the

Central Government Member

Not applicable

2. Additional Director-General (Economics)

*1(one) (2009) *Subject to variation dependent on work load

Not applicable

Rs. 37400-67000+Grade Pay Rs. 8900

Selection

Not applicable

Not applicable

-

Not applicable

Not applicable

By deputation or short term contract

By Deputation Essential:Officers of the All

India Services or Central Civil Services Group 'A' or Indian Economic Service or Autonomous Organisations or Regulatory Authorities or Universities or Academic or Research Institutions etc. having a Master's Degree in Economics and working in analogous post or grade or two years experience in the grade pay

of Rs. 8700 or six years in the grade pay of Rs. 7600 or equivalent and having experience in investigation under any economic law. Desirable: Experience in Competition Law
Selection Committee consisting of :-(i)
Secretary, Ministry of Corporate Affairs-Chairman(ii)
Representative of, Competition Commission of India not below the level of Joint Secretary-Member(iii) Expert nominated by the Central Government Member
Not applicable

3. Additional Director-General (Law)

2* (Two) (2009) *Subject to variation dependent on work load

Not applicable

Rs. 37400-67000+Grade Pay Rs. 8900

Selection

Not applicable

Not applicable

-

Not applicable

Not applicable

By deputation or short term contract

By Deputation:Essential:Officers of the

All India Services/Central Civil Services Group 'A' or Indian Law

Service or Indian Corporate Law Service or Autonomous

Organisations or Regulatory Authorities or Universities or

Academic or Research or Judicial Institutions having Bachelor's

Degree in Law from a recognised university and working in

analogous post or grade or two years experience in the grade pay

of Rs. 8700 or six years in the grade pay of Rs. 7600 or

equivalent and having experience in investigation under any

economic law.Desirable:Experience in Competition Law

Selection Committee consisting of :-(i)

Secretary, Ministry of Corporate Affairs-Chairman(ii)

Representative of Competition Commission of India not below the

level of Joint Secretary-Member(iii) Expert nominated by the

Central Government Member

Not applicable

4. Joint Director-General (Financial Analysis)

2(Two)*(2009) *Subject to variation dependent on work load

Not applicable

Rs. 37400-67000+Grade pay Rs. 8700

Selection

Not applicable

Not applicable

-

Not applicable

Not applicable

By deputation or short term contract

By Deputation:Essential:Officers of the

All India Services/Central Civil Services Group 'A'/ Autonomous

Organisations/ Regulatory Authorities/ Universities/ Academic/
Research Institutions with a Master's Degree in Business
Administration (Finance)/ Chartered Accountant/ Company
Secretary/ Cost and Works Accountant and working in analogous
posts/ grade or five years in the grade pay of Rs. 7600 or ten
years in the grade pay of Rs. 6600 or equivalent and having
experience in investigation under any economic
law.Desirable:Experience in financial analysis related to
competition issues

Selection Committee consisting of :-(i)
Secretary, Ministry of Corporate Affairs-Chairman(ii)
Representative of Competition Commission of India not below the
level of Joint Secretary-Member(iii) Expert nominated by the
Central Government Member

Not applicable

5. Joint Director-General (Economics)

3(Three) *(2009) *Subject to variation dependent
on work load

Not applicable

Rs. 37400-67000+Grade Pay Rs. 8700

Selection

Not applicable

Not applicable

-

Not applicable

Not applicable

By Deputation or short term contract

By Deputation:Eligibility:Essential:Officers

of the All India Services or Central Civil Services Group 'A' or
Indian Economic Service/ Indian Statistical/ Service/ AutonomousOrganisations or Regulatory
Authorities/ Universities/ Academic/ Research Institutions etc.
with Master's Degree in Economics/ Statistics and working in
analogous posts/ grade or five years in the grade pay of Rs. 7600
or ten years in the grade pay of Rs. 6600 or equivalent and
having experience

in investigation under any economic law.Desirable:Experience
in Competition Economics

Selection Committee consisting of :-(i)
Secretary, Ministry of Corporate Affairs-Chairman(ii)
Representative of Competition Commission of India not below the
level of Joint Secretary-Member(iii) Expert nominated by the
Central Government Member

Not applicable

6. Joint Director-General (Law)

3(Three) *(2009) *Subject to variation dependent
on work load

Not applicable

Rs. 37400-67000+Grade Pay Rs. 8700

Selection

Not applicable

Not applicable

-

Not applicable

Not applicable

By Deputation or short term contract

By Deputation:Eligibility:Essential:Officers

of the All India Services/ Central Civil Services Group 'A' or

Indian Law Service/ Indian Corporate Law Service/ Autonomous

(Central/ State Government) Organisations/ Regulatory

Authorities/ Universities/ Academic/ Judicial Institutions etc.

having Degree in Law from a recognised university and working in
analogous post or grade or five years in the grade pay of Rs.

7600 or ten years in the grade pay of Rs. 6600 or equivalent and

having experience in investigation under any economic

law.Desirable:Experience in Competition Law

Selection Committee consisting of :-(i)

Secretary, Ministry of Corporate Affairs-Chairman(ii)

Representative of Competition Commission of India not below the

level of Joint Secretary-Member(iii) Expert nominated by the

Central Government Member

Not applicable

7. Deputy Director-General (Financial Analysis)

4(Four) *(2009) *Subject to variation dependent

on work load

Not applicable

Rs. 15600-39100+Grade Pay Rs. 7600

Not applicable

Not applicable

Not applicable

-

Not applicable

Not applicable

By Deputation or short term contract

By Deputation:Essential:Officers from the

All India Services/ Central Civil Services Group 'A'/ Autonomous

Organisations/ Regulatory Authorities/ Universities/ Academic/

Research Institutions etc. with a Master's Degree in Commerce/

Master's Degree in Business Administration with Finance and

accounts/ Chartered Accountant/ Company Secretary/ Costs and

Works Accountant and working in analogous post/ grade or five

years service in the grade pay of Rs. 6600 or equivalent and

having experience in investigation under any economic

law.Desirable:Experience in Competition Law

Selection Committee consisting of :-(i)

Additional Secretary, Ministry of Corporate Affairs-Chairman(ii)

Representative of Competition Commission of India not below the

level of Joint Secretary-Member(iii) Expert nominated by the

Central Government Member

Not applicable

8. Deputy Director-General (Financial Analysis)

8(Eight) *(2009) *Subject to variation dependent

on work load

Not applicable

Rs. 15600-39100+Grade Pay Rs. 7600

Selection

Not applicable

Not applicable

-

Not applicable

Not applicable

By Deputation or short term contract

By Deputation:Essential:Officers from the

All India Services/ Central Civil Services Group 'A'/ Indian

Economic Services/ India Statistical Services/ Autonomous

Organisations/ Regulatory Authorities/ Universities/ Academic/

Research Institutions etc. with a Master's Degree in Economics/

Statistics and working in analogous post/ grade or five years

service in the grade pay of Rs. 6600 or equivalent and having

experience in investigation under any economic

law.Desirable:Experience in Competition Law

Selection Committee consisting of :-(i)

Additional Secretary, Ministry of Corporate Affairs-Chairman(ii)

Representative of Competition Commission of India not below the

level of Joint Secretary-Member(iii) Expert nominated by the

Central Government Member

Not applicable

9. Deputy Director-General (Law)

8(Eight) *(2009) *Subject to variation dependent

on work load

Not applicable

Rs. 15600-39100+Grade Pay Rs. 7600

Selection

Not applicable

Not applicable

-

Not applicable

Not applicable

By Deputation or short term contract

By Deputation:Essential:Officers from the

All India Services/ Central Civil Services Group 'A'/ Indian Law

Services/ Indian Corporate Law Service/ Autonomous Organisations/

Regulatory Authorities/ Universities/ Academic/ Research

Institutions etc. having Bachelor's Degree in Law from a

recognised university and working in analogous post/ grade or

five years service in the grade pay of Rs. 6600 or equivalent and

having experience in investigation under any economic

law.Desirable:Experience in Competition Law

Selection Committee consisting of :-(i)

Additional Secretary, Ministry of Corporate Affairs-Chairman(ii)

Representative of Competition Commission of India not below the

level of Joint Secretary-Member(iii) Expert nominated by the

Central Government Member

Not applicable

10. Deputy Director-General (Corporate Services)

1(One) *(2009) *Subject to variation dependent on work load

Not applicable

Rs. 15600-39100+Grade Pay Rs. 7600

Selection

Not applicable

Not applicable

-

Not applicable

Not applicable

By Deputation or short term contract

By Deputation: Bachelor's Degree or equivalent

in any discipline from a recognised

university Eligibility: Officers working in analogous post/

grade or five years experience in the grade pay of Rs. 6600 or

equivalent in the relevant field (Establishment/ Personnel

Management/ Secretarial Practices/

Administration) Desirable: Higher qualification and

experience will be given preference

Selection Committee consisting of :-(i)

Additional Secretary, Ministry of Corporate Affairs-Chairman(ii)

Representative of Competition Commission of India not below the

level of Joint Secretary-Member(iii) Expert nominated by the

Central Government Member

Not applicable

11. Assistant Director-General (Corporate Services)

3(Three) *(2009) *Subject to variation dependent on work load

Not applicable

Rs. 15600-39100+Grade Pay Rs. 7600

Selection

Not applicable

Not applicable

-

Not applicable

Not applicable

By Deputation or short term contract

By Deputation: Bachelor's Degree or equivalent

in any discipline from a recognised

university Eligibility: Officers working in analogous post/

grade or five years experience in the grade pay of Rs. 5400 or

six years in the grade pay of Rs. 4600 or ten years in the grade

pay of Rs. 4200 or equivalent in the relevant field

(Establishment/ Personnel Management/ Secretarial Practices/

Administration) Desirable: Higher qualification and

experience will be given preference

Selection Committee consisting of :-(i) Joint

Secretary, Ministry of Corporate Affairs-Chairman(ii)

Representative of Competition Commission of India not below the

level of Director Member(iii) Outside expert if considered
necessary may be co-opted by the committee-Member

Not applicable

12. Office Manager (Corporate Service)

4(Four) *(2009) *Subject to variation dependent
on work load

Not applicable

Rs. 9300-34800+Grade pay Rs. 5400

Selection

Not applicable

Not applicable

-

Not applicable

Not applicable

By Deputation or short term contract

Officers working in analogous post/ grade or five
years experience in the grade pay of Rs. 4800 or three years in
the grade pay of Rs. 4600 or eight years in the grade pay of Rs.
4200 or equivalent in the relevant field (Establishment/

Personnel Management/ Secretarial Practices/

Administration)Desirable:Higher qualification and

experience will be given preference

Selection Committee consisting of :-(i) Joint

Secretary, Ministry of Corporate Affairs-Chairman(ii) Deputy

Secretary, Ministry of Corporate Affairs-Chairman(iii)

Representative of Competition Commission of India not below the
level of Deputy Secretary Member

Not applicable

[Inserted by Notification No. G.S.R. 934 (E) dated 31.12.2009 (w.e.f. 15.5.2009)]

Related AI tags, queries and research notes

Translation